

PROFESSIONAL SERVICES AGREEMENT

This agreement (the "Agreement") is made between Kestrel Analytics Inc. ("Customer") and Harrow & Vane LLP ("Supplier").

1. Definitions and Interpretation

1.1 "Confidential Information" means all information disclosed by one party to the other that is marked confidential or would reasonably be understood to be confidential.

1.2 Clause headings are for convenience only and do not affect interpretation.

2. Services

2.1 Supplier shall provide the Services described in each Statement of Work with reasonable skill and care.

2.2 Supplier shall comply with all applicable laws in performing the Services.

3. Term and Termination

3.1 This Agreement commences on the Effective Date and continues for an initial term of three (3) years (the "Initial Term").

3.2 Following the Initial Term this Agreement shall renew automatically for successive periods of twelve (12) months unless either party gives not less than ninety (90) days' written notice of non-renewal.

3.3 Either party may terminate this Agreement immediately on written notice if the other party commits a material breach which is not remedied within thirty (30) days of notice.

4. Fees and Payment

4.1 Customer shall pay each valid invoice within sixty (60) days of receipt.

4.2 All sums are exclusive of VAT, which shall be payable in addition at the applicable rate.

5. Confidentiality

5.1 Each party shall keep the other party's Confidential Information confidential and shall not disclose it except as permitted by this clause.

6. Data Protection

6.1 Each party shall comply with applicable Data Protection Laws in connection with this Agreement.

6.2 Supplier shall process Customer Personal Data only on Customer's documented instructions and shall implement appropriate technical and organisational measures.

7. Indemnities

7.1 Supplier shall indemnify Customer against all losses arising from any claim that the Services infringe a third party's intellectual property rights.

7.2 The indemnified party shall notify the indemnifying party promptly of any claim.

8. Limitation of Liability

8.1 Nothing in this Agreement limits liability for death or personal injury caused by negligence, for fraud, or for any liability which cannot be limited by law.

8.2 Subject to the preceding sub-clause, each party's total aggregate liability under or in connection with this Agreement in any Contract Year shall not exceed one hundred and fifty (150) per cent of the Fees paid or payable in that Contract Year.

8.3 Neither party shall be liable for any indirect or consequential loss.

9. Intellectual Property

9.1 Supplier retains all intellectual property rights in the Services, the Platform and any deliverables.

9.2 Customer receives a non-exclusive licence to use the deliverables for its internal business purposes.

10. Exclusivity

10.1 During the Term, Customer shall not procure services substantially similar to the Services from any third party in the Territory.

11. Governing Law and Disputes

11.1 This Agreement and any dispute arising out of it shall be governed by the laws of Scotland, and the Scottish courts shall have exclusive jurisdiction.

IN WITNESS WHEREOF the parties have executed this Agreement.